

January 26, 2011



U.S. Department
of Transportation

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 8445
(SIXTEENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain shipments of various liquid or solid hazardous substances and hazardous wastes packed in inside plastic, glass, earthenware or metal containers, not exceeding one-gallon capacity, overpacked in a UN specification 1A2 or 1B2 metal drum, a UN 1G fiber drum or a UN1H2 plastic drum, not exceeding 220 liters (55-gallon) nominal capacity only for the purposes of disposal, re-packing or re-processing. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 173, Subparts A through E, except as specified herein.
5. BASIS: This special permit is based on the application of Clean Harbors Environmental Services, Inc. dated May 1, 2010 submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Various*	3, 4.1, 4.2, 4.3, 5.1, 5.2 6.1, 8 or 9	As Appropriate	I, II, or III

* limited to lab pack hazardous substances and hazardous wastes only.

7. SAFETY CONTROL MEASURES: Prescribed packaging is combination packaging. The outside packaging is either (1) a UN specification 1A2 or 1B2 metal drum, a UN1G fiber drum or a UN1H2 plastic drum, not exceeding 220 liters (55-gallon) nominal capacity. The inside packaging for the hazardous materials must be either plastic, glass, earthenware or metal, not over one-gallon capacity, be authorized in Part 173 and be compatible with its contents.

a. All materials in the outside drum must be compatible with each other; i.e. the mixture of the entire contents must not be capable of evolving a dangerous quantity of heat, gas or Division 2.3 material. Gross weight of drum and contents must not exceed 205 kilograms (450 pounds).

b. Inside packaging must be surrounded with sufficient cushioning and absorbent material to prevent excessive movement, breakage or damage to the inside packages and to absorb the total quantity of liquid contained within the drum in the event of leakage.

c. Transportation is limited to carriage by private or contract carrier only.

d. Hazardous wastes composed of waste non-DEA regulated medicines and pharmaceuticals collected for disposal purposes only may be named using a generic proper shipping name on a per container basis in accordance with the

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Precedence of Hazard Table in 49 CFR § 173.2a. The chemically compatible hazardous substances or hazardous waste materials must be packed in the same outside packaging.

e. Waste materials containing a material poisonous by inhalation, a Division 6.1 Packing Group I material, a Division 4.2 Packing Group I material, chloric acid and oleum (fuming sulfuric acid) must not be packaged in the same outside packaging.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: None as condition of this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by § 172.700 through § 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: sln